Notification Waiver Determination

KK Group Invest - PowerCon

Acquisition	KK Group Invest A/S (**KK Group Invest**) applied for a notification waiver in respect of its proposed acquisition of 100% of the share capital of PowerCon Holding ApS, and its subsidiaries PowerCon A/S and PowerCon USA Inc (together, **PowerCon**), as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	1 June 2026

Parties to the Acquisition	The acquirer, KK Group Invest, is a Danish-registered global technology company whose core business is the development, production, sale and servicing of power electronics system solutions and technology for onshore and offshore wind turbines. In Australia, KK Group Invest supplies mostly monitoring and service products to customers based in Australia. KK Group Invest is part of the A.P. Moller Group. Other entities within the A.P Moller Group include Svitzer, a provider of global towage services, and A.P. Moller-Maersk A/S (**APMM**), a container liner shipping, container terminal, port operations, and port services provider. The target, PowerCon, is a group of companies headquartered in Denmark that supply infrastructure solutions for shore power supply for use by ships at berth in ports globally, including in Denmark, Germany, the Netherlands, Spain, Australia and the USA. In Australia, PowerCon supplies a shore power supply system for the Port Authority of New South Wales for use in the White Bay Cruise Terminal in Sydney.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no horizontal overlap between KK Group Invest (or Svitzer and APMM) and PowerCon in the supply of shore power supply systems in Australia

	b. there is a low risk of foreclosure or other concerning vertical or conglomerate effects resulting from exclusionary conduct, bundling or tying of maritime services post-acquisition. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act